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Introductory

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Introductory

[2.233]

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(1) When a court determines any question with respect to –

- (a) the upbringing of a child; or
- (b) the administration of a child's property or the application of any income arising from it,

the child's welfare shall be the court's paramount consideration.

(2) In any proceedings in which any question with respect to the upbringing of a child arises, the court shall have regard to the general principle that any delay in determining the question is likely to prejudice the welfare of the child.

(2A) A court, in the circumstances mentioned in subsection (4)(a) or (7), is as respects each parent within subsection (6)(a) to presume, unless the contrary is shown, that involvement of that parent in the life of the child concerned will further the child's welfare.

(2B) In subsection (2A) 'involvement' means involvement of some kind, either direct or indirect, but not any particular division of a child's time.

(3) In the circumstances mentioned in subsection (4), a court shall have regard in particular to –

- (a) the ascertainable wishes and feelings of the child concerned (considered in the light of his age and understanding);
- (b) his physical, emotional and educational needs;
- (c) the likely effect on him of any change in his circumstances;
- (d) his age, sex, background and any characteristics of his which the court considers relevant;
- (e) any harm which he has suffered or is at risk of suffering;
- (f) how capable each of his parents, and any other person in relation to whom the court considers the question to be relevant, is of meeting his needs;
- (g) the range of powers available to the court under this Act in the proceedings in question.

(4) The circumstances are that –

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- (a) the court is considering whether to make, vary or discharge a section 8 order, and the making, variation or discharge of the order is opposed by any party to the proceedings; or
 - (b) the court is considering whether to make, vary or discharge a special guardianship order or an order under Part IV.
- (5) Where a court is considering whether or not to make one or more orders under this Act with respect to a child, it shall not make the order or any of the orders unless it considers that doing so would be better for the child than making no order at all.
- (6) In subsection (2A) 'parent' means parent of the child concerned; and, for the purposes of that subsection, a parent of the child concerned –
- (a) is within this paragraph if that parent can be involved in the child's life in a way that does not put the child at risk of suffering harm; and
 - (b) is to be treated as being within paragraph (a) unless there is some evidence before the court in the particular proceedings to suggest that involvement of that parent in the child's life would put the child at risk of suffering harm whatever the form of the involvement.
- (7) The circumstances referred to are that the court is considering whether to make an order under section 4(1)(c) or (2A) or 4ZA(1)(c) or (5) (parental responsibility of parent other than mother).

Essentials 24: [Children Act 1989](#) – section 1

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*All references to [ChA 1989](#) unless stated otherwise***Essential legal framework**

Section 1 structure: the original clarity of s 1 has been somewhat obscured by amendments. It can be broken down into five elements: the 'welfare principle', supported by the 'welfare checklist'; the 'delay principle'; the 'no order principle'; and the 'presumption of parental involvement'.

The 'welfare principle': is that 'the child's welfare shall (must) be the court's paramount consideration' when it makes any determination with respect to matters within s 1(a), 'the upbringing of a child', or (b), '...', which rarely arises. 'Upbringing' is defined by s 105(1): it 'includes the care of the child but not his maintenance'; 'paramount' by case law: 'it rules upon or determines the course to be followed': Lady Hale in *Re G* [2006] UKHL 43, [\[2006\] 2 FLR 629](#) at [27]. In short, although some issues within children cases are not determined by reference to the 'welfare principle' (see further below), the main application under ChA 1989, Pts I, II, IV and V (but not Pt III) almost always is.

The 'welfare checklist': is that in the circumstances set out in s 1(4) the court shall (must) have regard in particular to all seven factors listed in s 1(3). These are invariably known as the 'welfare checklist' although (like 'threshold criteria' and s 31) it is not a statutory term. Note that:

- the mandatory use of the 'welfare checklist' applies to most but not all matters to which the 'welfare principle' applies (s 1(4) is a subset of s 1(1)(a));
- the welfare checklist is not exhaustive. The 'delay principle' and the 'presumption of parental involvement' are two statutory examples, while case law emphasises this 'involves a welfare appraisal in

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the widest sense': see eg Munby LJ in *Re G (Education: Religious Upbringing)* [2012] EWCA Civ 1233, [2013] 1 FLR 677 at [26]–[30].

The 'delay principle': is '... the general principle that any delay ... is likely to prejudice the child's welfare': s 1(2). This is buttressed by s 32 in Pt IV proceedings and by FPR 2010, r 1.1(2)(a) and r 1.4(2)(a) and (m).

The 'no order principle': is that 'a court ... shall not make [an order under [ChA 1989](#)] unless it considers that doing so would be better for the child than making no order at all': s 1(5). The underlying principle is that the court should not intervene in parents' exercise of their parental responsibility unless it is necessary to do so.

The 'presumption of parental involvement': suffers from contorted drafting. The following analysis is suggested.

Pre-conditions to the presumption arising:

- s 1(2A): does the application come within s 1(4)(a) or s 1(7)?
- s 1(6): is the person a parent of the child concerned?
- s 1(6)(a): can that parent be involved in the child's life in a way that does not put the child at risk of suffering harm ...?
- s 1(6)(b): ... or is 'there is some evidence before the court ... to suggest that involvement of that parent in the child's life would put the child at risk of suffering harm whatever the form of involvement'?

The presumption and its rebuttal: if the pre-conditions are met:

- s 1(2A): the court is to presume that involvement of that parent in the life of the child will further the child's welfare;
- s 1(2B): – though involvement means 'involvement of some kind ... not any particular division of a child's time' –
- s 1(2A): 'unless the contrary is shown' ie it is shown that involvement will not further the child's welfare.

The relationship between the 'welfare principle' and HRA 1998: the [ChA 1989](#), including s 1, '... must be read and given effect in a way that is compatible with the Convention rights' (HRA 1998, s 3). The court must take into account decisions of the ECtHR (etc) (HRA 1998, s 2) and it is unlawful for a public authority (including courts and local authorities) to act in a way which is incompatible with a Convention right (HRA 1998, s 6).

Case law has cast certain issues in the 'necessary and proportionate' language of human rights, eg removal of a child from a parent under an interim care order: see *Re C (A child: interim separation)* [2019] EWCA Civ 1998, [2020] 1 FLR 853; and the making of a care order with, or with a plan for, a placement order: see *Re B (Care proceedings: appeal)* [2013] UKSC 33, [2013] 2 FLR 1075.

Common issues in practice

When does the welfare principle not apply? The child's welfare is not paramount (though in some cases is still a factor) in certain interlocutory and substantive matters about children, in particular:

- application for leave to apply for s 8 order under s 10(9);
- application to be joined as a party in children proceedings;
- application for child to give oral evidence in children proceedings;
- application not to proceed with threshold findings sought or to withdraw care proceedings;
- application for reporting restriction order;

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- application for financial relief for child under s 15 and Sch 1;
- application for secure accommodation order under s 25;
- application under [CACA 1985](#).

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Amendments—[ACA 2002, s 115](#); [CFA 2014, s 11](#).

Defined terms—'child', 'upbringing': s 105(1); 'harm': s 31(9), s 105(1).

Welfare is paramount (s 1(1))—Where the child's welfare is the court's paramount consideration it 'rules upon or determines the course to be followed' (*per* Lady Hale in *Re G (Children)* [2006] UKHL 43, [\[2006\] 2 FLR 629](#) at [27], citing Lord MacDermott's exposition in the landmark case of *J v C* [\[1970\] AC 668](#) at 710–711). What if the question in dispute impacts on the welfare of more than one child? Where there is one child who is the subject of the order being sought, that child's welfare will be paramount; where there is more than one subject child, an individual exercise is required in respect of each child and where there is a conflict the court must balance the competing welfare interests to find the situation of least detriment (see further *Birmingham City Council v H (No 3)* [\[1994\] 2 AC 212](#), [\[1994\] 1 FLR 224](#) at 221H–223H, 230–232; *Re T and E (Proceedings: Conflicting Interests)* [\[1995\] 1 FLR 581](#) (Fam), at 584–590; *Re A (Children) (Conjoined Twins: Medical Treatment)* [2000] EWCA Civ 254, [\[2001\] 1 FLR 1](#), at 51–53, 46–49 and at 111–112, 101–102); *Re S (Relocation: Interests of Siblings)* [2011] EWCA Civ 454, [\[2011\] 2 FLR 678](#), at [55]).

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Delay (s 1(2))—The general principle that delay is likely to prejudice the welfare of the child runs through the statutory scheme. See for example: (1) in the public law context, [ChA 1989, s 32\(1\)\(a\)\(ii\)](#), the statutory time limit of twenty-six weeks for the disposal of applications for care and supervision orders; (2) in the private law context, FPR 2010, PD12B – Child Arrangements Programme, para 1.2, which notes that where a court application is made 'the CAP encourages swift resolution of the dispute'; and (3) in all cases, the obligation on the court to deal with cases 'expeditiously and fairly' as part of the overriding objective in FPR 2010, r 1.1 and the emphasis on timetabling and fixing hearing dates (FPR 2010, rr 1.4(2)(m), 12.12(2)(a) and 12.13).

Delay and case management—In public law cases, the court can only sanction delay where it is 'necessary to enable the court to resolve the proceedings justly': [ChA 1989, s 32\(5\)](#) and see further notes under at para [2.328\[1\]](#). The phrase 'planned and purposeful delay' is 'a label that has had its day and is now better left unused' (*Re M-F (Children)* [2014] EWCA Civ 991, [\[2015\] 1 WLR 909](#) at [57], *per* Munby P. In *London Borough of Redbridge v A, B and E (Failure to Comply with Directions)* [\[2016\] EWHC 2627 \(Fam\)](#), where a local authority had failed comprehensively to comply with case management directions, MacDonald J observed at [12]: 'case management directions are the key tool by which the court maintains fidelity to the statutory principle, embodied [in] [s 1\(2\)](#) of the Children Act 1989, that delay must be avoided'.

Whilst there is no statutory time limit for private law cases, a failure to deal with cases diligently and in a timely and effective manner can lead to a breach of rights under ECHR, Arts 6 and 8 (see distillation of the relevant authorities in *Re G (Children: Intractable Dispute)* [2019] EWCA Civ 548, [\[2019\] 2 FLR 366](#) at [47]–[52]).

Delay and parallel criminal processes—It has long been established that the fact that criminal proceedings are pending is not of itself a reason to adjourn care proceedings (*Re W (Child: Sexual Abuse)* [2009] EWCA 644, [\[2009\] 2 FLR 1106](#) at [41]–[46]). In *Hammersmith London Borough Council and Fulham v G (Mother)* [2024] EWHC 2200 (Fam), [\[2025\] 1 FLR 762](#), Keehan J observed at [82]: 'It is essential for the fair and effective operation of the family justice system and of the criminal justice system that there is open, regular and effective dialogue and cooperation between the parties to the care proceedings, most obviously with the local authority, and the police and/or the CPS

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... The recently launched *The Disclosure of Information between Family and Criminal Agencies and Jurisdictions: 2024 Protocol* is an essential starting point'. For the 2024 Protocol itself, see Part V, para [5.252](#).

Delay and post-mortem reports—The potential for delay is particularly problematic in cases involving suspected child homicide. In *Re G (Child Post-Mortem Report: Delays)* [2022] EWFC 55, [\[2023\] 1 FLR 218](#), after considering the difficulties and outlining potential alternative approaches, McFarlane P concluded at [32]: 'In future the Family Court should only be obliged to delay its proceedings to await receipt of a post-mortem report in a suspected child homicide where it is truly 'necessary' to do so in order to achieve the overriding objective of dealing with cases justly, having regard to the welfare issues involved'.

Delay and adoption—Where the decision relates to the adoption of a child, the likely prejudicial impact of delay is reflected in similar (though not identical) terms in [ACA 2002, s 1\(3\)](#). See para [2.9](#).

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Presumption of parental involvement (ss 1(2A), 1(2B), 1(6), 1(7))—See analysis in Essentials 24 above at para 2.234 and note that on 22 October 2025, the Ministry of Justice announced that it will 'legislate to repeal the presumption of parental involvement when Parliamentary time allows'. In *(Re G (Children: Intractable Dispute)* [2019] EWCA Civ 548, [\[2019\] 2 FLR 366](#), Peter Jackson LJ observed (at [46]): 'So the presumption of parental involvement is very strong, but it is not absolute. As in all matters relating to the upbringing of a child, welfare prevails'.

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Welfare evaluation (ss 1(3) and 1(4))—The welfare evaluation is not restricted to the matters set out in the welfare checklist. What is required is 'a global, holistic evaluation of each of the options available for the child's future upbringing before deciding which of those options best meets the duty to afford paramount consideration to the child's welfare ... a balancing exercise in which each option is evaluated to the degree of detail necessary to analyse and weigh its own internal positives and negatives and each option is then compared, side by side, against the competing option or options' (*Re G (Care Proceedings: Welfare Evaluation)* [2013] EWCA Civ 965, [\[2014\] 1 FLR 670](#), per McFarlane LJ at [50] and [54]). In *Re G (Children) (Education: Religious Upbringing)* [2012] EWCA Civ 1233, [\[2013\] 1 FLR 677](#) at [27], Munby P provided a helpful exposition of the welfare evaluation:

Evaluating a child's best interests involves a welfare appraisal in the widest sense, taking into account, where appropriate, a wide range of ethical, social, moral, religious, cultural, emotional and welfare considerations. Everything that conduces to a child's welfare and happiness or relates to the child's development and present and future life as a human being, including the child's familial, educational and social environment, and the child's social, cultural, ethnic and religious community, is potentially relevant and has, where appropriate, to be taken into account. The judge must adopt a holistic approach

In *Re M (Children) (Ultra-Orthodox Judaism: Transgender Parent)* [2017] EWCA Civ 2164, [\[2018\] 2 FLR 800](#) at [60], Munby P expanded upon the 'core principle' that the function of the judge is to act as the 'judicial reasonable parent': 'judging the child's welfare by the standards of reasonable men and women today, ... having regard to the ever changing nature of our world including, crucially for present purposes, *changes in social attitudes*, and always remembering that the reasonable man or woman is receptive to change, broadminded, tolerant, easy-going and slow to condemn. We live, or strive to live, in a tolerant society. We live in a democratic society subject to the rule of law. We live in a society whose law requires people to be treated equally and where their human rights are respected. We live in a plural society, in which the family takes many forms, some of which would have been thought inconceivable well within living memory'.

The 'welfare checklist' (s 1(3))—The checklist is a non-exhaustive list to which the court must have regard when conducting its welfare evaluation, and each element in the checklist is subject to the overarching requirement in [ChA 1989, s 1\(1\)](#) that the welfare of the child must be the court's paramount consideration (*Re L (A Child)* [2019] EWHC 867 (Fam) per McFarlane P at [61]). There is no hierarchy of factors within the checklist, and its application will be sensitive to the facts of each case (see *Re P-S* [2013] EWCA Civ 223, [\[2014\] 2 FLR 27](#) at [43]; and *Re D*

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(*Withdrawal of Parental Responsibility*) [2014] EWCA Civ 315, [\[2015\] 1 FLR 166](#) at [13]). In *Re G (Children) (Residence: Same-sex Partner)* [2006] UKHL 43, [\[2006\] 2 FLR 629](#), Lady Hale said at [40]: 'it is of course the case that any experienced family judge is well aware of the contents of the statutory checklist and can be assumed to have had regard to it, whether or not this is spelled out in a judgment. However, in any difficult or finely balanced case, as this undoubtedly was, it is a great help to address each of the factors in the list, along with any others which may be relevant, so as to ensure that no particular feature of the case is given more weight than it should properly bear ...'. The checklist was described by Peter Jackson LJ in *Re A (Special Guardianship: Competing Applicants)* [2018] EWCA Civ 2240, [\[2019\] 1 FLR 687](#) at [14]–[15] as a provision which is 'obligatory, flexible and open-ended, providing the decision-maker with a workbench and tools with which to devise a proper welfare outcome ... paying attention to it tends to ensure that all important considerations are taken into account'.

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The ascertainable wishes and feelings of the child (considered in light of their age and understanding) (s 1(3)(a))—The authorities 'underline the importance of having regard to a child's views, and stress that the importance of this factor will increase as the child's age and/or level of understanding increases ...', but 'are also plain that the extent to which 'wishes and feelings' may be a, or even the, determinative factor will vary with the facts of each case' (*Re A (Contact: Human Rights Violations)* [2013] EWCA Civ 1104, [\[2014\] 1 FLR 1185](#) at [37], per McFarlane LJ).

'Ascertainable'—In private law proceedings, the child's views will ordinarily be obtained by a Cafcass 'children and family reporter' or local authority 'welfare officer' preparing a report under [ChA 1989, s 7](#) in accordance with their duties under FPR 2010, r 16.33 (see paras [2.243\[1\]–2.243\[8\]](#) and [3.828\[1\]](#)), or less commonly, if the child is joined as a party under FPR 2010, r 16.2 and a children's guardian is appointed under FPR 2010, r 16.4 with duties under FPR 2010, r 16.27 (see paras [3.797\[1\]](#), [3.799\[1\]](#) and [3.822\[1\]](#)).

In public law proceedings, the child's views will ordinarily be conveyed by their Cafcass children's guardian appointed pursuant to [ChA 1989, s 41](#) and FPR 2010, r 16.3 with duties under FPR 2010, 16.20 (see paras [2.341\[1\]](#), [2.341\[3\]](#), [3.798\[1\]](#) and [3.815\[1\]–3.815\[3\]](#)).

In private law proceedings where a children's guardian has been appointed (FPR 2010, r 16.6) and in public law proceedings (FPR 2010, r 16.21), the child may instruct a solicitor (with duties under FPR 2010, r 16.29) directly where they have sufficient understanding to conduct the proceedings without a children's guardian (see paras [3.801\[1\]](#), [3.815\[2\]](#) and [3.824\[1\]](#)).

In *Re L (A Child)* [2019] EWHC 867 (Fam), McFarlane P said at [61]: 'Whilst it is a fundamental principle, applicable to every case, that the child who is the subject of the proceedings shall be heard, the manner and the degree to which the child is heard will vary from case to case'. In that case, a long-running private law dispute, he accepted (at [65]–[68]) that the wishes and feelings of the 'heavily conflicted' eight-year-old boy could not be ascertained without causing him emotional harm.

'Considered in light of age and understanding'—Case law relating to when a child has sufficient understanding to instruct a solicitor directly provides helpful guidance on the correct approach to 'understanding' more generally: see review of authorities in *Re C (Child: Ability to Instruct Solicitor)* [2023] EWCA Civ 889, [\[2024\] 1 FLR 363](#), at [43]–[58] in which Peter Jackson LJ placed emphasis at [58] on the guidance given by Black LJ in *Re W (A Child) (Care Proceedings: Child's Representation)* [2016] EWCA Civ 1051, [\[2017\] 2 FLR 199](#), which included at [36]): 'Understanding can be affected by all sorts of things, including the age of the child, his or her intelligence, his or her emotional and/or psychological and/or psychiatric and/or physical state, language ability, influence etc ...'.

In *Re C (Child: Ability to Instruct Solicitor)* [2023] EWCA Civ 889, [\[2024\] 1 FLR 363](#) (see [80]), an application to discharge care orders, the understanding of the children aged 14 and 13 had been negatively influenced by their father's 'severe' alienating behaviours and the 14-year-old ought not to have been allowed separate representation. By contrast, in *Re A (Children)* [\[2025\] EWCA Civ 1521](#) (see [17]–[18], [20]), the children aged 16 and 15 ought to

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have been allowed separate representation to oppose their children's guardian's applications for passport orders and forced marriage protection orders.

For examples of cases where particular weight has been attached to the wishes and feelings of an older child:

- (1) In *Re G (No 2) (A Child: Return from USA)* [2025] EWHC 1224, Peel J ordered the return to the UK of 15 year-old-girl, in accordance with her wishes and feelings, and said at [46]: 'Every case is fact specific, and the weight to be attached to a child's wishes will vary. However, it seems to me that the clear views of a mature teenage child nearly 15 years old, freely expressed and genuinely held, are likely to attach considerable weight absent good reason to the contrary'.
- (2) In *Z v Z (Contact in Prison)* [2021] EWFC 47, [\[2022\] 1 FLR 1111](#) in accordance with the expressed wishes of boys aged 16 and 14, an order was made for indirect contact between them and their father who was serving a lengthy custodial sentences for child sexual offences, MacDonald J being satisfied (see [57]) that the boys had demonstrated sufficient understanding in the context of the nature and extent of the contact being contemplated; (this decision can be contrasted with *Re M (Children: Contact in Prison)* [2024] EWCA Civ 1104, [\[2025\] 1 FLR 550](#), at [20](4), where the children aged 12 and 10 had more limited understanding).
- (3) In *Re JS (Disposal of Body)* [2016] EWHC 2859 (Fam), [\[2017\] 4 WLR 1](#), a specific issue order was made granting the mother the right to make arrangements during the lifetime of the terminally ill 14-year-old for the preservation of her body at death, Peter Jackson J observing at [46] that the girl's wishes and feelings and her acute emotional needs were 'the predominant features' in the case.

s 1(3)(a) and 'Gillick competence'—In *Re S (Wardship: Removal to Ghana)* [2025] EWCA Civ 1011, [\[2026\] 1 FLR 73](#) McFarlane P clarified at [45] that: 'in terms of its legal impact, the decision in *Gillick* is limited to the ability of a young person to give autonomous valid consent to medical treatment'. He acknowledged at [46] that: 'over time, the phrase '*Gillick* competent' has been used more loosely to describe the age and maturity of young people who are seen as being capable of making informed decisions as to their future in a range of situations wholly unconnected with medical treatment'. On the facts of that case, which involved a 14-year-old boy who wanted to return to the UK from Ghana, contrary to his parents' wishes, he observed at [47]:

'His 'wishes and feelings' are matters that the court is specifically required to take into account by [CA 1989](#) (sic), s 1(3)(a). They are to be considered 'in the light of his age and understanding'. The fact that all parties before the judge accepted that S was *Gillick* competent was a factor that should have been given appropriate weight by the court in its overall welfare evaluation. The wishes and feelings of a young person who is so regarded are likely to attract more weight, and, depending on the issue in question and the circumstances of the case, in some cases significantly more weight, than that attaching to the wishes and feelings of a younger or less mature child. But, as a matter of law, it is wrong to assert ... that the wishes and feelings of a *Gillick* competent young person can only be overridden if the court finds clear and compelling reasons for doing so. As with each of the other elements in any holistic welfare balance, all will turn on the weight that is attributed to each of the relevant factors'.

The potential for confusion and need for clarity is further reflected in *O v P* [2024] EWCA 1577, [\[2025\] 2 FLR 37](#), a case involving issues relating to cross-sex hormone treatment for a 16-year-old, where Vos MR said (at [42]): 'Courts should always be clear as to the legal tests they are applying, whether they be questions of Gillick competence, capacity under the [Mental Capacity Act 2005](#) or the "best interests" of a young person where it is suggested that court should override a young person's decision under [section 8](#) of the FLRA 1969', and McFarlane P said at [46]: 'It is important to stress that the court's best interests jurisdiction with respect to consent to medical treatment given by a competent person who is over 16, but under 18, is not a general welfare jurisdiction'.

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Needs (physical, emotional and educational) (s 1(3)(b))—The inquiry into needs will inevitably be case-specific. Where a vulnerable 15-year-old sought a specific issue order permitting them to change their given name to a gender-neutral name, the court was required to consider the young person's 'strong emotional need to have their social identity endorsed through the legal recognition of their chosen given name' (*Re C (A Child) (Change of Given Name)* [2024] EWCA Civ 1582, [\[2025\] 2 FLR 1](#), per King LJ at [56]). Sometimes the child may have conflicting

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needs, as in *Re M (Children: Contact in Prison)* [2024] EWCA Civ 1104, [\[2025\] 1 FLR 550](#) (see [20(5)]) where it was necessary to balance the children's needs for contact with their father and their need for continuity of secure care by their mother.

Likely effect of change in circumstances (s 1(3)(c))—Sometimes referred to as the 'status quo argument', King LJ explained in *Re E-R (Child Arrangements Order)* [2015] EWCA Civ 405, [\[2016\] 1 FLR 521](#), at [34]: 'If one translates the term of art "status quo" into something more meaningful by relating it directly to the welfare of a child, it simply refers in the broadest sense, to the current living arrangements of a child'. There, the five-year-old child had been living in a secure and loving environment with carers who would help her cope with the loss of her terminally ill mother (see [35]–[36]). This was 'a significant feature of the case and a matter of great importance when assessing the likely effect on her of a change in her circumstances' to be balanced against the other features of the case.

This factor has attracted comment in public law cases where the court has been required to choose between a plan of adoption or a family placement where the child has been living with potential adopters for a significant period of time: see *Re M'P-P (Children)* [2015] EWCA Civ 584, at [47]–[51], and *Re W (A Child)* [2016] EWCA Civ 793, [\[2017\] 2 FLR 31](#) at [64]–[67].

Age, sex, background and relevant characteristics (s 1(3)(d))—The uniqueness of the subject child inevitably informs the court's approach to the other factors in [ChA 1989, s 1](#) and its overall welfare evaluation. In *L v L and Another (Anticipatory Child Arrangements Order)* [2017] EWHC 1212, [\[2018\] 1 FLR 108](#) (at [40], [47] and [60]) MacDonald J highlighted s 1(3)(a) ('ascertainable wishes and feelings') and s 1(5) ('no order principle') but determined that it was better to make a child arrangements order in favour of the father contrary to the expressed wishes of the 'extremely bright and articulate' 14-year-old-child who had been detained for treatment under the MHA1983, even though there was no date set for the child's hospital discharge, because to do so was central to the child's recovery and hence to her best interests which were the court's paramount consideration.

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Harm suffered or at risk of suffering (s 1(3)(e))—The definition of 'harm' is found in [ChA 1989, s 31\(9\)](#) (see [ChA 1989, s 105\(1\)](#)). It includes 'impairment suffered from seeing or hearing the ill-treatment of another' and in *Re O (Domestic Abuse: International Relocation)* [2025] EWCA 888, [\[2025\] 2 FLR 1168](#), Cobb LJ observed (at [90]):

'the law engaging issues of domestic abuse has been evolving at pace, responding to a heightened awareness (both in the Family Courts and more generally) of the harmful impact of domestic abuse within families, and the need to take effective steps to protect adult and child victims of abuse',

and noted how

'Legislation has been introduced (i.e., the [Domestic Abuse Act 2021](#) and the [Serious Crime Act 2015](#)); PD12J FPR 2010 and the FPR 2010 more generally have been revised to take proper account of greater learning and awareness in this area; and appellate courts have unambiguously highlighted the "devastating impact" of abuse on families in landmark decisions including but not limited to *Re H-N [Re H-N (Domestic Abuse: Finding of Fact Hearings)]* [2021] EWCA Civ 448] (see [24]–[33] and [139]), *Re K (Children)* [2022] EWCA Civ 468; [\[2022\] 1 WLR 3713](#) at [41]'.

Case law reflects how harm is multifarious: in *Re S (Parental Alienation: Cult)* [2020] EWCA Civ 568 the mother's adherence to a cult was a pervasive source of ongoing emotional and psychological harm to the parties' nine-year-old daughter (see [101]).

'Risk of suffering'—The same approach is to be taken when assessing risk under s 1(3) as when assessing the likelihood of harm for the purpose of the 'threshold criteria' in [ChA 1989, s 31](#) (*Re M and R (Child Abuse: Evidence)* [1996] EWCA Civ 1317; [\[1996\] 2 FLR 195](#) at 203, approved in *Re O and N (Minors) (Care: Preliminary Hearing)* [2003] UKHL 18; [\[2003\] 1 FLR 1169](#); and see notes under [ChA 1989, s 31](#) at para [2.326\[15\]](#)). Accordingly: (1) a child is at risk of suffering harm if there is a real possibility, a possibility that cannot sensibly be ignored having regard to the nature and gravity of the feared harm in the particular case; (2) the court must reach a conclusion based on facts proved to the court's satisfaction and inferences that can be drawn from them, and not on suspicion or mere doubts (see further *K-H (Children) (Care Orders: Proportionality)* [2025] EWCA 1368, [\[2025\] 4 WLR 116](#) per Peter Jackson LJ at [59]–[63]).

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Capability of parent (or other relevant person) to meet child's needs (s 1(3)(f))—Where one party is a natural parent and the other is not, the fact that a person is a natural parent is a factor of significance which will be taken into account and given appropriate weight as part of the overall welfare evaluation, but it does not of itself create a presumption in favour of that person (*Re G* [2006] UKHL 43, [\[2006\] 2 FLR 629](#) at [44], and *Re E-R (Child Arrangements Order)* [2015] EWCA Civ 405, [\[2016\] 1 FLR 521](#) at [35]).

[2.234[8]]

Range of powers (s 1(3)(g))—In *Re T-D (Children: Specific Issue Order)* [2024] EWCA 793, [\[2025\] 1 FLR 365](#), after an extensive review of case law, Peter Jackson LJ observed (at [41]): 'By its clear terms, the Act provides the court with the broadest and most flexible powers to make welfare decisions. The powers, which are themselves a welfare checklist factor, can be used individually or in combination. No two cases are the same and, where orders are needed, judges should use the powers that Parliament has given them in the way that they think best meets the needs of the case'. As part of its welfare evaluation, the court must consider ways in which any identified risk can be mitigated, and what options are available in terms of possible orders (*Re H-W* [2022] UKSC 17, [\[2022\] 2 FLR 533](#) at [54]–[62]).

No order (s 1(5))—The all-encompassing nature of the concept of parental responsibility underpins the 'no-order principle': the expectation that, all other things being equal, parents will exercise their responsibility so as to contribute to the welfare of their child without the need for a court order defining or restricting that exercise (*Re D (Withdrawal of Parental Responsibility)* [2014] EWCA Civ 315, [\[2015\] 1 FLR 166](#) at [11]). Section 1(5) does not create a presumption one way or the other; all it demands is that before the court makes any order it must ask the question: 'Will it be better for the child to make the order than making no order at all?' (*Re G (Children)* [2005] EWCA 1283, [\[2006\] 1 FLR 771](#) at [10]).

Where the court makes no order, there should still be a written order to that effect (*S v R (Parental Responsibility)* [\[1993\] 1 FCR 331](#) (FD)).

In the public law context, the obligation under Art 8 EHCR that a care order can only be made if it is necessary and proportionate reflects 'the longstanding proposition of English childcare law that the aim must be to make the least interventionist possible order' (*Re H-W* [2022] UKSC 17, [\[2022\] 2 FLR 533](#) at [45]).

In *Re T-D (Children: Specific Issue Order)* [2024] EWCA 793, [\[2025\] 1 FLR 365](#), where the court below had declined to resolve urgent issues relating to the children's schooling, Peter Jackson LJ reviewed statute and case law and said:

[42] ... court orders represent an interference with the freedom of parents to make their own decisions and must be used in a way that is proportionate to the presenting problem. The interference must be no more than is necessary to achieve the desired outcome for the child.

[43] The court has a broad discretion as to whether orders should be made or not. There will be some disagreements that are too insignificant to warrant an order, and some questions may fall too far into the future to allow a welfare decision to be made. But where an important issue has crystallised, the court will need a sound reason for declining to decide it.

Proportionality—In the public law context, the UKSC has confirmed that the approach to welfare evaluation in *Re G (Care Proceedings: Welfare Evaluation)* [2013] EWCA Civ 965, [\[2014\] 1 FLR 670](#) (see para 2.234[4]) is the accepted standard for the manner in which a contemplated child protection order must be tested against the requirement that it be necessary and proportionate (*Re H-W* [2022] UKSC 17, [\[2022\] 2 FLR 533](#) at [47]).

In international relocation cases, a judge will always need to consider the proportionality of the outcome, but this will naturally and instinctively occur when the judge performs the essential balancing exercise within the wider welfare review and it is unnecessary and likely to be unhelpful for judges to undertake a separate proportionality evaluation or 'cross-check'; the proportionality assessment and the welfare review need to be part of the 'joined up decision-

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making process' (*Re O (Domestic Abuse: International Relocation)* [2025] EWCA 888, [\[2025\] 2 FLR 1168](#) per Cobb LJ at [97]).

[2.235]

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